

24STCV24078 24STCV24078

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MOTION TO COMPEL

FURTHER

The Court

tenders the following tentative decision in the matter Minyoung Daciuk, et al. v. Kevin Scot, et al., Los Angeles County Superior Court case number 24STCV24078, set for hearing on July 17, 2026. Minyoung Daciuk (Plaintiff) moves for an order compelling Kevin Scott (Defendant) to produce further responses to Plaintiff's requests for production of documents, set one (RFPs). Plaintiff also requests monetary sanctions in the total amount of \$2,875. Alternatively, Plaintiff seeks evidence or issue sanctions. Defendant opposes the motion. Plaintiff's motion is granted and the Court awards sanctions in the reduced amount of \$1,437.50.

A.

Legal Standard

A party may move for an order compelling further responses to a request for production of documents if the propounding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Id., § 2031.310, subd. (b)(1).)

"For discovery purposes, information is relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.'
[Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence.

[Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

Plaintiff moves to compel further responses to RFPs 6, 7, 12, 21, 22, 31, 32, 34, 36, 39, 40, 43–46, 51–56, 58, 59, and 61–66. Plaintiff first propounded the relevant RFPs on September 2, 2025. (Gardner Decl. ¶ 2.) Defendant provided deficient responses, and on January 13, 2026, the Court ordered him to provide further responses. (Id. ¶ 3.) Thereafter, Defendant paid the required sanctions and served amended responses. (Id. ¶¶ 4–8.) Plaintiff determined that those responses remained deficient and the parties met and conferred throughout April. (Id. ¶¶ 9–16.) However, they were unable to reach a satisfactory resolution for Plaintiff, who filed the present motion compelling further responses on June 8, 2026.

Plaintiff argues that further responses are required for two reasons. First, the responses to requests 6, 7, 12, 21, 22, 31, 32, 34, 36, 39, 40, 43–46, 51–56, 58, 59, and 61–66 contain language limiting the scope of the responses based on objections to the requests on various grounds. These limits are improper. Defendant seeks to confine his productions to transactions concerning the subject dispute only, but Plaintiff’s requests seek further information to substantiate alter ego allegations. Indeed, the Court already ordered Defendant to provide further responses to these requests.

Second, with respect to requests 6, 7, 12, 21, 22, 37, 39, 40, 51, 52, 54, 61–63, 65, and 66 Defendant seeks to withhold certain documents based on objections without revealing what those documents are. This contravenes the requirement to identify objectionable categories of item in response to an inspection demand under section 2031.240, subdivision (a). Thus, Defendant’s responses are deficient. Defendant’s arguments in opposition are without merit. Accordingly, Plaintiff’s motion is granted.

Plaintiff argues for the imposition of sanctions against Defendant. “[T]he court shall impose a monetary sanction .

. . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).) Here, Defendant did not act with substantial justification in opposing the present motion, offering no argument in opposition. Thus, sanctions are appropriate. The Court credits Plaintiff’s counsel’s hourly rate of \$575. (Gardner Decl. ¶ 19.) However, given the level of experience associated with such a rate, the simplicity of the motion, and Defendant’s lack of substantive opposition to it, the Court finds a 2.5-hour estimate more appropriate. Accordingly, Plaintiff is awarded sanctions in the amount of \$1,437.50, payable by Defendant’s counsel $(\$575 \text{ per hour} \times [2.5 \text{ hours}] = \$1,437.50)$. The Court does not find evidentiary or issue sanctions appropriate at this time, but such sanctions may be appropriate if further motions to compel are required in this matter.

C. Conclusion

The Court grants

Plaintiff’s motion. Defendant is compelled to provide further responses to RFPs 6, 7, 12, 21, 22, 31, 32, 34, 36, 39, 40, 43–46, 51–56, 58, 59, and 61–66 within 20 days. The Court awards sanctions to Plaintiff in the amount of \$1,437.50.